



CHAPTER xxv.

An Act for extending and varying the powers of the A.D. 1908.
Great Western Railway Company in respect of certain
authorised railways and works and for other purposes.
[18th June 1908.]

WHEREAS the Great Western Railway Company (in this Act called "the Company") were by the Great Western Railway (Additional Powers) Act 1905 (in this Act referred to as "the Additional Powers Act 1905") and the Great Western Railway (New Railways) Act 1905 (in this Act referred to as "the New Railways Act 1905") authorised to construct certain railways and works in those Acts respectively referred to and it is expedient that the times limited by the said Acts for the compulsory purchase of lands for and for the completion of such of the railways by those Acts respectively authorised as are in this Act mentioned or referred to in that behalf should be extended and that the Company should be empowered to construct the deviations of certain of the said railways and the new branch railway and other works and to exercise the powers by this Act respectively authorised and conferred upon them and to acquire certain lands houses and buildings in this Act described or referred to:

And whereas plans and sections showing the lines and levels of the railway and other works by this Act authorised to be constructed and plans showing the lands by this Act authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerks of the peace for the several counties within which such

A.D. 1908. — railway and other works will be constructed and such lands are situated :

And whereas it has been found desirable to alter the line and levels of a portion of the Deviation Railway No. 1 originally proposed to be authorised by the Bill for this Act and plans and sections showing the line and levels of such alteration and a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands through which the said alteration will pass have been deposited with the clerk of the peace for the county of Stafford :

And whereas the plans sections and books of reference firstly herein-before mentioned as amended by the plans sections and book of reference lastly herein-before mentioned are in this Act referred to as the deposited plans sections and books of reference respectively :

And whereas it is expedient that the Company should be authorised to apply their funds for the purposes of this Act :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited for all purposes as the Great Western Railway Act 1908.

Incorporation of general Acts.

2. The following Acts and parts of Act are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts :

The Railways Clauses Consolidation Act 1845 :

Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective

meanings and the expression "the railway" or "the railways" means the branch railway and deviation railways by this Act authorised. A.D. 1908.

4. The provisions of sections 18 to 23 of the Railways Protection
Clauses Consolidation Act 1845 shall for the purposes of this of gas and
Act extend and apply to the water and gas mains pipes and water mains
apparatus of any local authority and shall be construed as if of local
"local authority" were mentioned in those sections in addition authorities.
to "company" or "society" Provided that any penalties recovered
under section 23 shall be appropriated to that fund of the local
authority to which their revenues in respect of water or gas (as
the case may be) are appropriated.

5. The powers for the compulsory purchase of lands for the Extension of
purposes of Railway No. 4 deviations No. 1 and No. 2 Railways time for com-
No. 5 and No. 6 and deviations No. 3 and No. 4 authorised by the pulsory pur-
Additional Powers Act 1905 are hereby extended and may be chase of
exercised by the Company during a period of two years from lands under
the fourth day of August 1908 and after the expiration of that Additional
period the said powers shall cease. Powers Act
1905.

6. The time limited by the Additional Powers Act 1905 Extension of
for the completion of Railway No. 4 deviations No. 1 and No. 2 time for com-
Railways No. 5 and No. 6 and deviations No. 3 and No. 4 by pletion of
that Act authorised is hereby extended for a period of three certain rail-
years from the fourth day of August 1910 and sections 31 and ways autho-
32 of the said Act shall be read and construed as if the time rised by
limited by this Act for the completion of the said railways had Additional
been the time limited by the said Act of 1905 for the completion Powers Act
thereof. 1905.

If the said railways and deviations are not completed within
the period limited by this Act with reference thereto then on
the expiration of that period the powers by the said Act of 1905
as extended by this Act granted to the Company for making
and completing the same shall cease except as to so much thereof
respectively as shall be then completed.

7. The powers for the compulsory purchase of lands for the Extension of
purposes of so much of Railway No. 6 as is not by this Act time for com-
authorised to be abandoned and of Railways Nos. 7 and 8 pulsory pur-
authorised by the New Railways Act 1905 are hereby extended chase of
and may be exercised by the Company during a period of two lands under
years from the eleventh day of July 1908 and after the expiration New Rail-
of that period the said powers shall cease. ways Act
1905.

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Extension of
time for com-
pletion of
certain rail-
ways autho-
rised by New
Railways
Act 1905.

8. The time limited by the New Railways Act 1905 for the completion of so much of Railway No. 6 as is not by this Act authorised to be abandoned and of Railways Nos. 7 and 8 by that Act authorised is hereby extended for a period of three years from the eleventh day of July 1910 and sections 54 and 55 of the said Act shall be read and construed as if the time limited by this Act for the completion of the said railways and portion of railway had been the time limited by the said Act of 1905 for the completion thereof.

If the said railways and portion of railway are not completed within the period limited by this Act with reference thereto then on the expiration of that period the powers by the said Act of 1905 as extended by this Act granted to the Company for making and completing the same shall cease except as to so much thereof respectively as shall be then completed.

Power to
make rail-
ways.

9. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections relating thereto the railways herein-after described with all proper stations sidings approaches roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes The railways and works herein-before referred to and authorised by this Act are—

The following branch railway in substitution for and in modification of the powers contained in the Birmingham North Warwickshire and Stratford-upon-Avon Railway Acts 1894 and 1895 (that is to say):—

A branch railway 1 furlong and 7·32 chains in length wholly in the city and county borough of Birmingham commencing by a junction with the Oxford and Birmingham Railway of the Company and terminating at a point $1\frac{1}{2}$ chains or thereabouts east of a point in Moor Street 2 chains or thereabouts south of the junction of Shut Lane with that street :

The following deviation of Railway No. 6 authorised by the New Railways Act 1905 (that is to say):—

A deviation railway (No. 1) 6 miles 6 furlongs and 6·90 chains in length wholly in the county of Stafford commencing in the parish of Bobbington in the rural

district of Seisdon at a point in the field or enclosure numbered 55 on the 25-inch ordnance map (second edition 1903) of that parish and terminating in the parish and urban district of Tettenhall at or near the junction of Compton Road with Finchfield Hill : A.D. 1908.

The following deviation railway in substitution for Railway No. 9 authorised by the New Railways Act 1905 (that is to say) :—

A deviation railway (No. 2) 3 miles 4 furlongs and 9·40 chains in length wholly in the county of Stafford commencing in the parish of Wombourn in the rural district of Seisdon by a junction with the Deviation Railway No. 1 and terminating in the parish and rural district of Kingswinford by a junction with the Kingswinford Branch Railway of the Company :

And the Company may abandon and discontinue the maintenance and use of so much of the Kingswinford Branch Railway of the Company as lies between the termination of the Deviation Railway No. 2 and the termination of the said branch railway at Oak Farm and may retain hold and appropriate the site and soil thereof for the purposes of the said deviation and for the general purposes of the Company or may sell and dispose of the same.

10. The Company may abandon the construction of Railway No. 9 authorised by the New Railways Act 1905 and so much of Railway No. 6 authorised by the said Act as lies between the commencement and termination of the Deviation Railway No. 1 by this Act authorised. Abandonment of certain railways authorised by New Railways Act 1905.

11.—(1) The abandonment by the Company under the authority of the last preceding section of this Act of any railway or portion of any railway or works shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in Compensation for damage to land by entry &c. for purposes of railways abandoned.

A.D. 1908. the Railways Clauses Consolidation Act 1845 or the New Railways Act 1905.

(2) Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land for the purposes of or in relation to any portions of the railways or works authorised to be abandoned by the last preceding section of this Act the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof.

Rates and
charges for
railways.

12. The railways shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) and for all other purposes be deemed to be part of the Company's railways as if the same had been part of the Great Western Railway at the date of the passing of the Great Western Railway Company (Rates and Charges) Order Confirmation Act 1891 and Scale I. of Part I. in the Appendix to the said Order shall be applicable to the railways :

Provided always that as respects parcels other than perishable merchandise by passenger train the rates and charges to be demanded and recovered in respect thereof shall not exceed as follows :—

With respect to the branch railway the rates and charges prescribed by the Great Western Railway Amendment and Extensions Act 1847 ;

With respect to the deviation railways the rates and charges prescribed by the Shrewsbury and Birmingham Railway Act 1846 :

Provided also that as regards passenger traffic the maximum fares to be charged by the Company for the conveyance of passengers upon the railways including every expense incidental to such conveyance shall not exceed the following (that is to say) :—

For every passenger conveyed in a first-class carriage three-pence per mile ;

For every passenger conveyed in a second-class carriage A.D. 1908.
twopence per mile;

For every passenger conveyed in a third-class carriage one
penny per mile;

For every passenger conveyed on the railway for a less
distance than three miles the Company may charge as
for three miles and every fraction of a mile beyond three
miles or any greater number of miles shall be deemed a
mile.

13. Every passenger travelling upon the railways may take Passengers' luggage.
with him his ordinary luggage not exceeding one hundred and
fifty pounds in weight for first-class passengers one hundred and
twenty pounds in weight for second-class passengers and one
hundred pounds in weight for third-class passengers without any
charge being made for the carriage thereof.

14. In altering for the purposes of this Act the roads next Inclination of roads.
herein-after mentioned the Company may make the same of any
inclinations not steeper than the inclinations herein-after mentioned
in connection therewith respectively (that is to say) :—

Number on Deposited Plans.	Parish.	Description of Road.	Intended Inclination.
DEVIATION RAILWAY No. 1.			
14	Trysull and Seisdon	Public	1 in 18 on both sides.
7	Wombourn - -	Public	1 in 18 on both sides.
19	Wombourn - -	Public	1 in 16 on both sides.
72	Wombourn - -	Public	1 in 18 on both sides.
76	Wombourn - -	Public	{ 1 in 16 on the south-west side. 1 in 18 on the north-east side.
7	Penn (Lower) - -	Public	{ 1 in 20 on the east side. 1 in 16 on the west side.
20	Penn (Lower) - -	Public	1 in 18 on both sides.
DEVIATION RAILWAY No. 2.			
23	Wombourn - -	Public	1 in 18 on both sides.
34	Wombourn - -	Public	{ 1 in 20 on the east side. 1 in 18 on the west side.

15. The Company may make the arches of the bridges for Height and span of bridges.
carrying the Deviation Railway No. 1 over the roads next
herein-after mentioned of any heights and spans not less than

A.D. 1908. the heights and spans herein-after mentioned in connection therewith respectively (that is to say):—

Number on Deposited Plans.	Parish.	Description of Road.	Span.	Height.
72	Wombourn - - -	Public - - -	20 feet - -	15 feet.
76	Wombourn - - -	Public - - -	20 feet - -	15 feet.
78	Wombourn - - -	Public - - -	20 feet - -	16 feet.

Width of certain roadways.

16. The Company may make the roadway over the bridges by which the following roads will be carried over the railways of such width between the fences thereof as the Company think fit not being less than the respective widths herein-after mentioned in connection therewith respectively (that is to say):—

Number on Deposited Plans.	Parish.	Description of Roadway.	Width of Roadway.
DEVIATION RAILWAY No. 1.			
19	Wombourn - - -	Public - - -	20 feet.
7	Penn (Lower) - - -	Public - - -	20 feet.
DEVIATION RAILWAY No. 2.			
23	Wombourn - - -	Public - - -	20 feet.
43	Wombourn - - -	Public - - -	20 feet.

Power to divert footpaths.

17. Subject to the provisions of this Act the Company may divert the footpaths referred to in the next following table in the manner shown upon the deposited plans and sections and may stop up and cause to be discontinued as a footpath so much of each existing footpath as will be rendered unnecessary by the new portion of footpath so shown on the said plans (that is to say):—

Railway.	Parish.	No. of Footpath on deposited Plans.
Deviation Railway No. 1 - -	Bobbington - -	7.
Do. do. - -	Wombourn - -	32.
Do. do. - -	Do. - -	51 and 53.
Do. do. - -	Penn (Lower) - -	11 and 13.

18. Where this Act authorises the diversion of a road or footpath or the making of a new road or footpath in substitution for an existing road or footpath or portion thereof and the stopping up of an existing road or footpath or portion thereof such stopping up shall not take place until such new road or footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company and the road authority until two justices shall have certified that the new road or footpath has been completed to their satisfaction and is open for public use.

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Stopping up
roads and
footpaths in
case of di-
version or
making of
new road.

Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing road or footpath is situate seven days' notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road authority of the new road or footpath or as from the date of the said certificate as the case may be all rights of way over or along the existing road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company:

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

19. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered.

Company
not liable to
repair sur-
face of road
level of
which is not
permanently
altered.

20. In the construction of the railways the Company may deviate laterally from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown thereon.

Power to
deviate
laterally.

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For protection of
London
and North
Western
Railway
Company.

21. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company shall not use enter upon or in any way interfere with any of the lands or property numbered 1 on the deposited plans in the city and county borough of Birmingham or any other lands or property under which the railway or works of the London and North Western Railway Company are situate except upon terms to be agreed between the Company and the London and North Western Railway Company or failing agreement to be settled by an arbitrator to be appointed by the Board of Trade such terms not to prevent the permanent user by the Company of the surface of the said lands or property for railway purposes.

For protection of
corporation
of Birmingham.

22. The following provisions for the protection and benefit of the lord mayor aldermen and citizens of the city of Birmingham (in this section called "the corporation") shall unless otherwise agreed in writing between the corporation and the Company have effect (that is to say):—

- (1) The Company shall not break up any street or raise sink or alter the position of any sewer drain or watercourse or any gas water or electric mains pipes services or apparatus of the corporation until they shall have given to the town clerk of Birmingham seven clear days' notice in writing of their intention to commence the intended works accompanied by plans sections and other necessary particulars showing the works proposed to be executed by the Company so far as they affect the streets sewers drains watercourses gas water and electric mains pipes services and apparatus proposed to be so interfered with :
- (2) The Company in carrying out the works authorised by this Act shall make good all damage which may be caused to or may be the consequence of any interference with any sewer drain or watercourse or to any gas water or electric main pipe service or apparatus of the corporation :
- (3) Wherever it may be necessary to intercept or remove or displace any sewer or drain the Company shall before intercepting removing or displacing such sewer or drain construct according to a plan to be reasonably approved of by the corporation another sewer or drain in lieu of and of equal capacity to the sewer or drain

so proposed to be intercepted or removed or displaced and such substituted sewer or drain shall be connected by the corporation at the expense of the Company with the existing sewer or drain in such manner as shall be reasonably approved by the corporation: A.D. 1908.

- (4) If it shall be necessary to construct any portion of the works authorised by this Act over any sewer drain gas water or electric main belonging to the corporation provision shall be made to the reasonable satisfaction of the corporation for protecting such sewer drain gas water or electric main from injury and for affording easy access thereto for the purpose of examination alteration renewal or repair:
- (5) If and whenever the water gas or electric mains pipes or apparatus of the corporation shall be removed or displaced in the execution of the powers of this Act the substituted mains or pipes necessary for maintaining the supply of gas water or electricity shall be of the same size and description as those previously in use and shall previous to the removal or displacement of the existing mains or pipes for which they are substituted be laid down by the corporation at the expense of the Company:
- (6) If by reason of the execution of any of the powers of this Act the corporation shall necessarily incur any cost in altering or removing any existing sewer drain gas water or electric main or apparatus the Company shall repay to the corporation such cost:
- (7) In carrying out the widening of the bridge carrying the Oxford and Birmingham Railway or any extension thereof authorised by this Act over Park Street the Company shall construct the widened portion of such bridge so that such widening shall be of not less span than thirty-seven feet between the abutments which shall so far as practicable be set out to lines to be reasonably approved by the city surveyor and such widening shall be so constructed that the headway shall be not less than the headway of the existing bridge In carrying out the widenings of the bridges carrying the said railway or any extensions thereof authorised as aforesaid over Allison Street and Meriden Street the Company shall construct the widened

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portions of such bridges so that such widenings shall be of not less span and headway than the span and headway of the existing bridges respectively but the Company shall be at liberty to lower the springing level of the arch over Allison Street to a height of not less than sixteen feet above the level of the adjoining pavement :

- (8) The widenings of the said bridges shall be constructed and maintained so as to prevent as far as practicable the dripping of water and the abutments of the widened portions of the bridges (except where the Company may desire to provide openings therein) shall be lined with blue bricks of a quality to be reasonably approved by the city surveyor to a height of four feet six inches from the surface of the respective footways and the Company shall line the vertical walls of the said new abutments between the said height of four feet six inches and the soffits of the superstructure except where bedstones may be required in the case of the bridge over Park Street with first quality white glazed bricks and in the case of the bridges over Allison Street and Meriden Street with brindle bricks to be reasonably approved as aforesaid and shall maintain the same clear and uncovered and in good condition and the Company shall paint all iron work and wood work under the said bridges with paint of a light colour to the reasonable satisfaction of the city surveyor and shall re-paint the same to the like satisfaction at least once in every five years Provided that nothing in this subsection shall prevent the Company posting under the said bridges bills notices or advertisements relating to the business of the Company :
- (9) If by reason of the construction of the branch railway and works by this Act authorised in the city of Birmingham the corporation find it necessary to provide additional lighting under the bridges carrying the existing railway and the said branch railway and works over Park Street Allison Street and Meriden Street respectively the Company shall pay to the corporation within three months after the completion of the said branch railway and works the reasonable

cost of providing lighting and maintaining the additional lamps necessary for that purpose provided that the total number of such lamps shall not exceed eight and that the amount to be paid by the Company in respect of providing lighting and maintaining each such lamp shall not exceed fifty pounds: A.D. 1908:

- (10) The Company shall not permit any of the walls parapets or screens on the street side of the bridges to be widened under the powers of this Act to be used for the posting of bills or other advertising purposes except such as relate to the business of the Company:
- (11) Any difference which may arise between the corporation and the Company as to the true intent and meaning of any of the provisions of this section or as to the mode of giving effect thereto shall be settled by an engineer to be appointed (unless otherwise agreed) upon the application of either of the parties in difference by the president of the Institution of Civil Engineers.

23. Nothing in this Act shall authorise the Company to enter upon take or use any part of the property numbered on the deposited plans of the branch railway by this Act authorised 54 in the parish and county borough of Birmingham. For protection of Thomas Walker and Sons Limited.

24. Notwithstanding anything shown upon the deposited plans and sections the following provisions shall apply and have effect for the protection of the county council of the administrative county of Stafford (in this section referred to as "the county council") except so far as the county council and the Company may otherwise agree:— For protection of Staffordshire County Council.

- (1) The Company shall not alter the level of or divert any main road under the control of the county council or to the maintenance and repair of which the county council are liable to contribute without the previous consent of the county council nor shall the Company without such consent as aforesaid interfere with the structure of any county bridge or approach repairable by the county council:

- (2) The bridge to carry Deviation Railway No. 2 over the Wolverhampton and Stourbridge main road numbered

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on the deposited plans 30 in the parish of Himley shall be constructed in accordance with plans and sections to be submitted to and reasonably approved of by the surveyor to the county council and the Company shall not commence the works until the surveyor shall have signified his approval to the same. Provided that if the said surveyor fail for a period of twenty-eight days after the submission to him of the said plans and sections to signify his disapproval thereof with the grounds of his disapproval he shall be deemed to have approved thereof. Such bridge shall have a minimum span of forty-five feet measured square to the main road and a minimum headway above the surface of such main road of sixteen feet six inches :

- (3) The said bridge shall be constructed with parapets or screens which shall be not less than six feet above the level of the upper surface of the rails for the whole width of the road and shall be continued so as to exceed the span of the bridge for a distance of ten feet on each side of the bridge. The abutments of the said bridge shall be parallel to the centre line of the roadway :
- (4) The bridge if of iron construction shall be constructed so as to prevent water dripping on to the main road so far as is reasonably practicable :
- (5) The bridges for carrying the main roads numbered respectively on the deposited plans 2 in the parish of Trysull and Seisdon and 64 in the parish of Wombourn over Deviation Railways Nos. 1 and 2 respectively shall each be constructed on the skew to suit the present line of road and of a width between the parapets in the case of the bridge carrying the road numbered 2 of not less than thirty-five feet and in the case of the bridge carrying the road numbered 64 of not less than thirty-six feet and if reasonably practicable not less than thirty-eight feet measured on the square in each case and the parapets of the said bridges shall be not less than six feet in height above the level of the main road and shall consist of steel plates or other material as the Company may determine consistent with its suitability to act as a screen and

shall extend throughout the whole length of the bridge and from the ends of such parapets to a distance of not less than fifteen feet beyond the face of the abutment on either side. Such bridges shall be constructed of such strength as to carry the weight of any heavy traffic without injury : A.D. 1908.

- (6) The bridges carrying the roads numbered respectively on the deposited plans 2 in the parish of Trysull and Seisdon and 64 in the parish of Wombourn over Deviation Railways Nos. 1 and 2 respectively shall be so constructed as to leave a depth of nine inches between the surface of the road and the upper surface of the superstructure. Provided that the flooring shall be so constructed as to provide a depth of one foot ten inches between the said surfaces for such width as will permit of the laying of five lines of pipes each twelve inches in diameter across each of the said bridges and in such positions as may be agreed between the Company and the council :
- (7) The Company shall give to the county council all reasonable facilities to enter upon the lands or works of the Company at any time hereafter for the purpose of carrying out any works connected with the widening altering rebuilding or maintaining any county bridge or approach thereto. All works of the Company in any way affecting any county bridge or approach shall be constructed under the superintendence and to the reasonable satisfaction of the surveyor to the county council and in accordance with plans and sections to be submitted to and reasonably approved of by the said surveyor and the Company shall not commence the works until the surveyor shall have signified his approval to the same and the Company shall in executing any such work conform to any reasonable requirements of the county surveyor :

Provided that if the surveyor fail to signify his disapproval of the said plans and sections within twenty-eight days after the submission of them by the Company he shall be deemed to have approved the same :

- (8) If in the execution of the works required for the construction of the bridges in this section mentioned or

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any of the works by this Act authorised it shall be necessary to interfere with any main road county bridge or approach such interference shall be so conducted that at all times during the progress of such works all persons and vehicles may pass and repass along or over the said main roads bridges or approaches and without any unnecessary interruption and the county council shall give to the Company such facilities for and during the construction of the said works by permitting the temporary closing of portions of the said main roads bridges or approaches or the temporary diversion thereof as the Company may reasonably require but so as not to entirely close any such main road bridge or approach against traffic :

- (9) The Company shall during the progress and until the completion of the works hereinbefore mentioned make and carry into effect such arrangements for lighting and watching the portion of the roads bridges or approaches interfered with and also the works themselves as may be reasonably necessary to prevent danger or accident to persons and vehicles using the said roads bridges or approaches and if damage or injury shall result from the failure of the Company to make and carry into effect such arrangements or by reason of any of the operations of the Company affecting the said roads bridges or approaches the Company shall be liable for such damage or injury and the same may be recovered by the county council from the Company :
- (10) Where the surface of any main road county bridge or approach shall be interfered with in the construction of the works the same shall be completely restored by the Company to the reasonable satisfaction of the surveyor to the county council within three months after the completion of the works :
- (11) If any difference shall arise between the Company and the county council with respect to the matters aforesaid that difference shall unless otherwise agreed be settled by an arbitrator to be appointed on the application of either party by the president of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

25. For the protection of the mayor aldermen and burgesses of the borough of Wolverhampton (in this section called "the corporation") the following provisions shall unless otherwise agreed in writing between the corporation and the Company be observed and have effect (that is to say):—

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For protec-
tion of corpo-
ration of
Wolver-
hampton.

(1) The bridges carrying the roads or highways respectively numbered on the deposited plans of Deviation Railway No. 1 1 in the urban district of Tettenhall and 51 in the parish of Lower Penn and 7 17 and 20 in the parish of Lower Penn shall be so constructed as to permit the corporation to lay in the roadway or in a receptacle or receptacles to be provided by and at the expense of the Company beneath or by the side of the same water mains or pipes of such sizes as the corporation may reasonably require for the supply of their existing district and if in the roadway at a sufficient depth to provide a covering of not less than one foot three inches above the top of the main or pipe unless the Company encase the same with non-conducting composition at least three inches in thickness in which case six inches of cover shall be sufficient and if in a receptacle or receptacles these shall be so constructed as to enable the corporation to lay the said water mains or pipes without unnecessarily sharp curves therein and the Company shall provide convenient means of access to the said receptacle or receptacles :

(2) The provisions of subsections 4 8 9 10 12 and 13 of section 39 (For protection of corporation of Wolverhampton) of the New Railways Act 1905 shall so far as they relate to any water mains of the corporation which may be laid in the roads referred to in the preceding subsection extend and apply to the exercise of the powers of this Act as if the same were with any necessary modifications set forth in this section provided that the expression "the railways" shall include the Deviation Railway No. 1 authorised by this Act.

26. Notwithstanding anything shown upon the deposited plans and sections the following provisions shall apply and have effect for the protection of the Seisdon Rural District Council (in this section referred to as "the district council") except so far as

For protec-
tion of Seis-
don Rural
District
Council.

A.D. 1908. the district council and the Company may otherwise agree (that is to say):—

- (1) If in making the deviation railways the Company shall construct an accommodation work within a reasonable distance from any public footpath which is crossed by the said railways in the district council's district they may and shall if required to do so by the district council divert such public footpath to such accommodation work and carry the same over under or across the said deviation railways by means of such accommodation work. Provided always that if no such accommodation work be provided in the field or enclosure numbered 61 on the deposited plans of Deviation Railway No. 2 in the parish of Wombourn the public footpath which intersects the properties numbered on the said plans 55 61 and 60 in the said parish shall be carried over the railway by means of a footbridge :
- (2) In lieu of the diversion shown on the deposited plans of the public footpath leading from Ounsdale to Wombourn which intersects the field or enclosure numbered on the deposited plans of Deviation Railway No. 1 32 in the parish of Wombourn the Company may and shall construct a new footpath three feet in width along the eastern boundary of the field or enclosure numbered on the deposited plans of Deviation Railway No. 2 21 in the parish of Wombourn from Plank's Lane to the public road numbered 20 in the said parish on the said plans and on completion of the said footpath all public rights of way shall cease over the existing footpath between its junctions with Plank's Lane and the road at Ounsdale respectively :
- (3) The Company may and shall if required so to do by the district council in writing under the hand of their clerk within twenty-eight days of the receipt by him of a notice from the engineer of the Company of the intention of the Company to commence the preparation of the plans for the construction of the bridge carrying the road numbered on the deposited plans of Deviation Railway No. 2 23 in the parish of Wombourn divert the said road in the manner shown on the plan marked A and signed by William Wylie Grierson on behalf of the Company and Herbert Taylor on behalf

of the district council and the district council shall on demand repay to the Company the cost of such diversion including the purchase of the necessary lands therefor other than the cost of the land for and the construction of the bridge to carry the said diverted road over the said railway and the raised approaches to such bridge and from and after the completion and opening of the said diverted road all rights of way over the portion of the existing road so diverted shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of the said railway the site of the said portion of the existing road as far as the same is bounded on both sides by lands of the Company: A.D. 1908.

- (4) The Company shall carry the public bridle road in the field numbered on the deposited plans of Deviation Railway No. 2 3 and the public bridle road numbered 19 and 21 both in the parish of Himley under the railway by means of subways which the Company have agreed to provide for the accommodation of the owner of the land traversed by such respective roads and each of such subways shall be not less than twelve feet in height. Provided always that the Company may lower the levels of the said bridle roads respectively so far as they may require but so that the gradients shall not be made steeper than 1 in 12. Provided further that the Company may divert the said bridle road numbered 19 and 21 as aforesaid so far as may be necessary to enable them to carry the same under the said railway by means of one subway:
- (5) The Company shall carry Deviation Railway No. 2 over the occupation road and tramway numbered on the deposited plans 15A in the parish of Kingswinford by means of a bridge with a span of not less than twenty-five feet and a headway of not less than sixteen feet:
- (6) All bridges carrying any public road belonging to or under the control of the district council over any railway authorised by this Act or the New Railways Act 1905 shall be constructed of sufficient strength to

A.D. 1908.

carry the traffic of the district including steam road rollers and traction engines :

- (7) Where any railway authorised by this Act or by the New Railways Act 1905 crosses any public road in the district of the district council the span or width of any bridge either under or over such road shall be a clear span or width measured square to the centre line of such road and the direction of such road shall not be deviated or altered in any way except and to the extent expressly authorised by this Act or the said Act of 1905 :
- (8) The Company shall before constructing any bridge over any public highway under the control of the district council submit for the reasonable approval of the district council plans and sections showing the headway span and width of the structure and the general alignment of the abutments of and approaches to such bridge Provided always that if for twenty-eight days after such plans and sections shall have been submitted to the said district council they shall fail to give notice to the Company of their objections thereto they shall be deemed to have approved thereof :
- (9) The existing channels footpaths and fencing of all diverted roads the gradients of which are altered to enable any railway authorised by this Act or by the New Railways Act 1905 to pass under them and the kerbs (if any) of all existing footpaths which are so altered shall be made good by the Company to the reasonable satisfaction of the surveyor of the district council and be of a character similar to that on other parts of the same roads or footpaths and all such roads which may be diverted or raised shall be made with a bottom nine inches deep and with four inches of consolidated broken stone to the reasonable approval of the said surveyor :
- (10) The bridges and arches carrying any railway authorised by this Act or by the New Railways Act 1905 over any district road or footpath in the district of the district council shall so far as is reasonably practicable be constructed so as to prevent the dripping of water on the road or footpath underneath :

- (11) Whenever it may be necessary to intercept or interfere with any sewer of the district council the Company shall before intercepting or interfering with such sewer construct according to a plan to be reasonably approved of by the district council another sewer in lieu of and of equal capacity with the sewer so proposed to be intercepted or interfered with and such substituted sewer shall be connected by the district council at the reasonable expense of the Company with any existing sewer which may be intercepted or interfered with and in such manner as shall be reasonably approved by the district council: A.D. 1908.
- (12) The Company shall at their own expense construct all necessary culverts where any watercourse in which the district council are interested is interfered with by any railway authorised by this Act or by the New Railways Act 1905.

27. For the protection of the urban district council of Bilston (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council have effect (that is to say):—

For protec-
tion of Bils-
ton Urban
District
Council.

- (1) The Company shall not in the exercise of the powers of this Act enter upon take or use any part of the lands of the council numbered on the deposited plans of Deviation Railway No. 1 50 in the parish of Wombourn and of Deviation Railway No. 2 4 in the said parish except with the previous consent of the council in writing under their common seal:
- (2) If and so far as the Company in the construction of the works by this Act authorised shall raise lower or otherwise alter the level of any road in which any mains pipes (including service pipes) or apparatus of the council are laid they shall at the same time raise lower or otherwise alter the position of such mains pipes or apparatus so that the said mains or pipes shall be either at the same depth below the surface of the lowered road as previously existed or at a depth which will give a cover of three feet whichever shall be the lesser depth:
- (3) In constructing the bridge to carry the road numbered on the deposited plans 7 in the parish of Wombourn over Deviation Railway No. 1 the Company shall make

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proper and suitable provision for enabling the council to lay down therein and to maintain two mains or pipes not exceeding nine inches in diameter providing at least nine inches of cover over such mains or pipes and shall permit the council at any time thereafter to lay such mains or pipes free of any charge other than damage to the railway and works of the Company and where any such bridge is to carry any road in which the council have mains pipes or apparatus already laid the Company shall relay all such mains pipes and apparatus over such bridge and encase the same with non-conducting composition at least three inches in thickness and shall provide at least six inches of cover over the said composition. The council shall have full power and authority at all times free of any wayleave charge or payment to maintain repair duplicate renew or relay all mains pipes and apparatus so laid or relaid in or over any such bridge. Provided always that the council in so doing shall not alter the structure of any such bridge:

- (4) In laying down repairing renewing or relaying any new mains and pipes to be laid by the council after the passing of this Act across the Deviation Railway No. 1 such work shall be done under the superintendence and to the reasonable satisfaction of the engineer of the Company and only according to such plans and in such manner as shall be reasonably approved by him in writing and the council shall make good to the reasonable satisfaction of the said engineer the roadway over the said bridges so far as the same may be disturbed or interfered with. All such works shall be constructed executed and done so as to cause as little injury as may be to such bridges or interruption to the passage or conduct of traffic over the said deviation railway or at to or from any station thereon. If any injury or interruption as aforesaid shall arise from or in any way be owing to any of such works or the leakage or failure of any such mains or pipes the council shall make compensation to the Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided:

- (5) When constructing the bridge for carrying the railway over the road numbered on the deposited plans of Deviation Railway No. 1 49 in the parish of Wombourn the Company shall make all proper and suitable provision for carrying the telephone lines and apparatus of the council under such bridge and shall execute all such works both temporary and permanent as may be necessary for duly and securely re-erecting the said telephone lines and apparatus without interrupting the telephonic communication thereby maintained except so far as may be absolutely necessary and the council shall thereafter have full power and authority at all reasonable times free of any wayleave charge or payment to maintain repair duplicate renew or re-erect such telephone lines and apparatus : A.D. 1908.
- (6) The Company shall not raise lower or otherwise alter the position of any mains pipes or apparatus of the council unless a plan section and particulars of the proposed works of the Company affecting such mains pipes or apparatus shall have been submitted to the engineer of the council not less than fourteen days before the commencement of the works and shall have been approved by him in writing Provided that if such engineer fail to approve or disapprove of such plan section and particulars within the said period he shall be deemed to have approved of the same :
- (7) All works to be executed by the Company under the provisions of this section shall be executed at the expense of the Company and to the reasonable satisfaction of the engineer or surveyor of the council and under his superintendence if he think fit to attend after receiving not less than forty-eight hours' notice before the commencement of the works :
- (8) The expense of all repairs and renewals of the mains pipes and apparatus of the council or any works in connection therewith which may at any time hereafter be rendered necessary by the acts or defaults of the Company their contractors agents or workmen or rendered necessary by reason of any subsidence or other damage resulting from the works of the Company at any time shall be borne and paid by the Company :

A.D. 1908.

- (9) If the Company at any time erect a station or buildings or premises for human habitation within a radius of one mile from the well belonging to the council situate at Wombourn they shall provide such works and apparatus as may be necessary to prevent any faecal matter urine slops or other noxious materials from such station buildings or premises contaminating the water supply of such well. The necessary works and apparatus to prevent the contamination of the water supply shall be constructed to the reasonable approval of the engineer or surveyor of the council who shall be supplied with plans and description before such works are commenced and such station buildings or premises shall not be used until such approval has been given :

The Company shall maintain until such time as they shall have connected with the sewers of the sanitary authority all such works and apparatus to the reasonable satisfaction of the engineer or surveyor of the council who shall at all reasonable times be permitted by the Company to inspect the same :

- (10) Any difference arising between the Company and the council respecting any of the matters referred to in this section shall be settled by an arbitrator to be appointed failing agreement on the application of either party by the president of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

For protection of Staffordshire and Worcestershire Canal Navigation.

28. The provisions of section 46 of the New Railways Act 1905 shall extend and apply to the crossing by Deviation Railway No. 1 by this Act authorised of the canal numbered 25 on the deposited plans in the parish of Wombourn.

For protection of Henry Herbert Ward.

29. The following provisions for the protection of Henry Herbert Ward and his successors in title to the Orton Estate in the county of Stafford (who are in this section called "the owner") shall unless otherwise agreed between the owner and the Company apply and have effect (that is to say) :—

Notwithstanding anything shown on the deposited plans the Company shall construct Deviation Railway No. 1 by this Act authorised through the estate of the owner between the points A and B shown on the plan signed in

duplicate by the Right Honourable the Earl of Onslow the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred on the line shown on the said plan and coloured red and one copy of which plan has been deposited in the Parliament Office of the House of Lords and the other copy in the Private Bill Office of the House of Commons.

A.D. 1908.

30. The following provisions for the protection and benefit of Sir Richard Arthur Surtees Paget Baronet (in this section called "the owner") shall unless otherwise agreed apply and have effect (that is to say):—

For protection of Sir Richard Arthur Surtees Paget Baronet.

- (1) The Company shall if and when the owner shall call upon them so to do construct and maintain at the Company's sole cost a bridge on Railway No. 6 authorised by the New Railways Act 1905 at the point marked "X" on the plan signed by William Wylie Grierson on behalf of the Company and Thomas Adams on behalf of the owner so as to provide access across the railway between the severed portions of the property of the owner:
- (2) The said bridge shall have a span of twenty feet and the level of the rails thereover shall not be lower than one foot below the level of the rails shown on the deposited sections at the said point and the depth between the surface of the rails and the soffit of the superstructure of the said bridge shall not be greater than two feet six inches so as to provide as great a headway as possible without altering the existing level of the ground thereunder. Provided however that the Company shall carry down the abutments and wingwalls of the said bridge to such a depth as will enable the owner to make a roadway under the said bridge with a headway of fourteen feet:
- (3) The Company shall repay to the owner any extra cost reasonably incurred by him in constructing the roadway connecting his property and Henwood Lane under the said bridge as shown in blue on the said plan between the points marked D and B instead of the roadway as shown in red on the said plan between the points marked A and B. Provided that in the event of the owner being unable to obtain an option for the purchase of the land necessary for the con-

A.D. 1908.

struction of the portion of the first-mentioned roadway between the points marked C and D on the said plan the same shall be diverted between the points marked A and C as shown in green on the said plan :

- (4) In the event of any difference arising between the Company and the owner under the foregoing provisions of this section the same shall be determined by an engineer to be appointed on the application of either party by the president of the Institution of Civil Engineers :
- (5) Nothing in this section contained shall take away prejudice or affect the rights of the owner under the Lands Clauses Acts but in determining any compensation which may become payable by the Company to the owner regard shall be had to the provisions of this section.

For protec-
tion of Kings-
winford
Rural
District
Council.

31. In constructing Deviation Railway No. 2 by this Act authorised the following provisions for the protection of the Kingswinford Rural District Council (in this section called "the council") shall unless otherwise agreed between the Company and the council apply and have effect (that is to say) :—

- (1) The Company shall not without the consent of the council enter upon take or use any portion of the roads or field numbered respectively on the deposited plans 8 9 16 53A and 66 in the parish and rural district of Kingswinford :
- (2) The Company may and shall divert the footpath numbered on the said plans 15 in the said parish and rural district so as to carry the same under the said deviation railway through the bridge to be constructed over the occupation road numbered on the said plans 15A in the said parish and rural district and the public shall have the same rights of using the diverted footpath as they have of using the existing footpath :
- (3) Nothing in this Act shall empower the Company to stop up and extinguish the rights of way for foot passengers along the occupation road numbered on the said plans 37 and 43 in the said parish and rural district but they shall either carry the same across the said deviation railway on its existing site or divert and carry it across the railway at some other point to be agreed upon between the council and the Company :

(4) The Company shall not without the consent of the council A.D. 1908.

stop up and discontinue the road numbered on the said plans 45 and 49 in the said parish and rural district but shall carry the same under the said deviation railway by means of a bridge of a clear span of not less than twenty feet and a height of fifteen feet but in doing so may lower the road under and on either side of the said bridge provided that the gradient of the lowered portion of the road shall not be steeper than one in eight :

(5) The Company shall maintain the public rights of footway over the occupation road numbered on the said plans 7 in the said parish and rural district and over the footpath numbered 56 and 60 as aforesaid and carry the said footway and footpath under the Deviation Railway No. 2 by means of subways :

(6) In the event of any difference arising under the provisions of this section that difference shall unless otherwise agreed between the Company and the council be determined by an engineer or other fit person to be appointed on the application of either party by the president of the Institution of Civil Engineers.

32. For the protection of William Humble Earl of Dudley or other the owner or owners for the time being of the estates in the counties of Stafford and Worcester known as the Himley Estate (all of whom are in this section included in the expression "the said Earl") and for the benefit of the tenants of the said Earl the following provisions shall unless otherwise agreed between the said Earl and the Company be observed and have effect (that is to say) :—

For protec-
tion of Earl
of Dudley.

(1) The Company shall contemporaneously with the construction of Deviation Railway No. 2 form metal and channel the existing occupation road commencing in the village of Swindon and known as Himley Lane and running in an easterly or north-easterly direction for five hundred yards or thereabouts and the existing occupation road commencing in the village of Himley at Seven Houses Row on the main road from Himley to Bridgnorth and running in a westerly and south-westerly direction for four hundred yards or thereabouts :

A.D. 1908.

- (2) The Company shall form metal and channel the said occupation roads to the full width (not exceeding twenty-four feet) which the existing boundary walls and hedges permit:
- (3) The Company shall between the eastern and south-western termini respectively of the said occupation roads lay out level form metal channel and construct with all necessary drainage and other works on land to be set apart for the purpose by the said Earl along the direction of the existing public footpath a new road twenty-four feet in width making with the said occupation roads a through communication between the villages of Swindon and Himley and will fence the same on each side (except when there are sufficient existing fences) to the reasonable satisfaction of the said Earl and with all necessary and proper gates and posts the said Earl also providing sufficient land for such fences:
- (4) The roads constituting the through communication to be laid out in pursuance of this section shall subject to subsection (1) hereof be constructed in all respects in accordance with the legal requirements of the Seisdon Rural District Council with a view to such communication being dedicated to the public use and taken over by the said council but unless and until the same shall be so taken over the said Earl shall be at liberty to take such steps as he may think reasonable for maintaining the same as a private roadway save and except that nothing herein contained shall deprive the public of their right of user of the same as a public footpath:
- (5) The Company shall take all necessary and proper steps to procure the completion and equipment of their railway from the termination of Deviation Railway No. 2 to their main line at or near Brettell Lane known as the Kingswinford Branch Railway as a passenger railway and shall complete and open the same for passenger traffic simultaneously with the opening for traffic of Deviation Railway No. 2 and the portions of Deviation Railway No. 1 and of Railway No. 6 authorised by the New Railways Act 1905 which lie to the north of the junction of Deviation Railway

No. 2 with Deviation Railway No. 1 described in and authorised by this Act and shall not open the said Deviation Railway No. 2 or the said portions of Deviation Railway No. 1 and of the authorised Railway No. 6 until the Kingswinford Branch Railway shall have been so completed and opened for passenger traffic as aforesaid : A.D. 1908.

The Company shall forthwith after the opening of the said Kingswinford Branch Railway and Deviation Railway No. 2 and the said portions of Deviation Railway No. 1 and of the authorised Railway No. 6 for passenger traffic run and permanently continue to run thereon a sufficient number of passenger trains each way daily to accommodate the passenger traffic and give a through service from Stourbridge Junction to Wombourn and thence to Wolverhampton and vice versa :

- (6) The said Earl may at his own cost from time to time make any road railway or other bridge or bridges over or under the railways by this Act authorised at any point or points on his estate and may widen any bridge erected by the Company on his estate in the construction of any such railway or under or over any road where any such railway passes through his estate provided that all such works shall be constructed to the reasonable satisfaction and under the superintendence of the Company's engineer and all bridges so constructed by the said Earl over the railway shall have a clear headway of not less than sixteen feet above the level of the rails and the Company shall give all reasonable facilities for giving effect to the provisions of this section and every such bridge shall be maintained by him :
- (7) Subject to the conditions herein-after contained the said Earl shall be entitled to all game and rabbits found upon any part of the lands purchased by the Company from the said Earl in pursuance of the powers of this Act or upon any of the slopes cuttings and embankments of the railways by this Act authorised so far as the same traverse his estate and shall but subject as aforesaid have the exclusive right for himself and all persons duly authorised by him at all times of

A.D. 1908.

preserving the same with liberty but subject as aforesaid for himself and his servants and friends to sport over the said lands and any part of the said railway constructed upon such lands but no firearms shall be discharged upon the lands of the Company and the said Earl shall not for the purpose of obtaining access to any of the said slopes and embankments do any unnecessary damage to any fences erected by the Company. Provided always and it is hereby agreed that the rights of sporting and taking any game herein-before agreed to be reserved to the said Earl shall at all times hereafter be exercised and enjoyed upon the express condition that—

(a) The owner his heirs and assigns shall be subject to all risks whatsoever incident to or consequent upon the exercise or enjoyment thereof and the Company their successors and assigns shall not be liable to the said Earl or any guest servant or other person authorised by him for any accident or injury which may happen to him or them in the course of or in any way arising out of the exercise or enjoyment of such rights;

(b) The said Earl shall at all times hereafter keep the Company their successors and assigns effectually indemnified against all actions proceedings costs damages expenses claims and demands by any person or persons whomsoever arising out of the exercise by the said Earl or by any guest servant or other person authorised by him or them of the said rights either of sporting taking away or preserving game;

(c) If at any time hereafter the said Earl shall neglect or fail to keep the Company their successors and assigns so indemnified as aforesaid the said rights herein-before agreed to be reserved to the said Earl shall immediately thereupon cease and determine;

(d) The said Earl shall also upon the slopes of all cuttings and embankments keep down the rabbits so as to prevent any unnecessary damage to the said slopes or embankments in default of which the

Company shall have the right in order to prevent such injury to depute any person to take or trap the said rabbits : A.D. 1908.

- (8) Any dispute or difference which may arise between the said Earl and the Company with reference to the provisions of this section or the works to be carried out in pursuance thereof shall be determined by an arbitrator to be appointed at the instance of either party by the Board of Trade :
- (9) Nothing in this section shall prejudice abridge or defeat the rights of the said Earl or his tenants to compensation for land or easements acquired for or injury occasioned to him or them for or in consequence of the works or operations of the Company.

33. If the railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of railways.

34. If the Company fail within the period limited by this Act to complete the railways and open the same for the public conveyance of passengers the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the uncompleted railway or railways is or are completed and opened for the public conveyance of passengers or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the works. Imposing penalty unless railways opened.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as herein-after provided.

A.D. 1908.

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But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the uncompleted railway or railways by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

35. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any land-owners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

Power to
make bridge
widening.

36. Subject to the provisions of this Act the Company may make and execute in the lines and according to the levels shown upon the deposited plans and sections relating thereto the bridge widenings herein-after mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes (that is to say):—

Widenings in the city and county borough of Birmingham
in the county of Warwick on the south-western side of

the bridges carrying the Oxford and Birmingham Railway of the Company over Park Street Allison Street and Meriden Street respectively. A.D. 1908.
—

37. The Company may stop up the following road and portion of road (that is to say):— Stopping up roads where no new road substituted.

(1) In the city and county borough of Birmingham in the county of Warwick in connection with the branch railway by this Act authorised the road leading from Park Street to Shaw's Passage and passing under the Oxford and Birmingham Railway of the Company at a point 3 chains or thereabouts south-east of Park Street :

(2) In the parish and urban district of Tettenhall in the county of Stafford in connection with the construction of Railway No. 6 authorised by the New Railways Act 1905 stop up and discontinue so much of the road known as Meadow View Terrace as lies between Henwood Road and the Staffordshire and Worcestershire Canal.

When and so soon as the road or portion of road as aforesaid is stopped up all rights of way over the road or portion of road so stopped up shall be extinguished but no such road or portion shall be stopped up unless the Company are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of such houses and lands may otherwise agree and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the road or portion of road so stopped up :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

38. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take use and appropriate for the purposes of and in connection with the Swansea District Railway of the Company now in course of construction all or any Power to Company to acquire additional lands.

A.D. 1908. of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say):—

In the county of Glamorgan—

Certain lands in the parish of Clase Rural in the rural district of Swansea forming the whole or portions of the fields or enclosures numbered respectively 521 522 523 590 and 591 on the 25-inch ordnance map (second edition 1898) of that parish and which said fields or enclosures numbered 590 and 591 as aforesaid are or are reputed to be common or commonable lands and known as Llangyfelach Common;

Certain lands in the parish of Llandilo Tal-y-Bont in the rural district of Swansea forming the whole or portions of the fields or enclosures numbered 1249 1250 1440 and 1556 on the 25-inch ordnance map (second edition 1907) of that parish and which said enclosure numbered 1440 as aforesaid is or is reputed to be common or commonable land and known as Mynydd Lliw:

Provided always that the Company shall not purchase or acquire any greater portion of the said lands known as Llangyfelach Common than two and three-quarter acres nor any greater portion of the said lands known as Mynydd Lliw than one and a quarter acres and the Company shall before entering upon the said lands in lieu of paying compensation therefor add to the said commons respectively adjoining lands belonging to the Company or acquired by them for that purpose being of equal area with the portion of the said commons respectively required to be taken by them as aforesaid and such lands shall be thrown into and form part of the commons from which such portion was taken and shall be subject to the common and other rights now enjoyed over or in respect of the said portion.

For the purpose of providing lands to be added to the said common lands under this section the Company may subject to the provisions of this Act enter upon take and use any of the lands delineated on the deposited plans and described in the deposited books of reference.

For protection of
Postmaster-
General,

39. If any work authorised by this Act involves the removal or alteration of any post office letter box the Company shall not remove or alter such box but shall give notice to the

Postmaster-General of the removal or alteration required and the Postmaster-General shall remove or alter the box as he may think fit and the Company shall pay to the Postmaster-General all expenses incurred by him in relation to such removal or alteration.

A.D. 1908.

40. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights of way over lands taken compulsorily.

41. The Company may in constructing the bridge widenings by this Act authorised deviate from the lines thereof to the extent of the limits of deviation marked on the deposited plans and may deviate from the levels thereof shown on the deposited sections to any extent not exceeding two feet.

Power to deviate in construction of bridge widenings.

42. The powers of this Act for the compulsory purchase of lands by the Company shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

43. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to owners to grant easements &c.

44. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without

Owners may be required to sell parts only of certain properties.

A.D. 1908. material detriment thereto Therefore the following provisions shall have effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term “the owner” and the said properties are herein-after referred to as “the scheduled properties” :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as “the tribunal”) shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company

being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal : A.D. 1908.

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

A.D. 1908.
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The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Power to
Company to
apply funds
to purposes
of Act.

45. The Company may apply to all or any of the purposes of this Act to which capital is properly applicable any moneys from time to time raised by them and which are not by any of the Acts relating to the Company made applicable to any special purpose or which being so made applicable are not required for the special purpose. And the Company may for the general purposes of their undertaking and for the more efficient working of their traffic issue any shares or stocks which under the authority of any Act passed prior to the present session of Parliament the Company may have created or may hereafter create but which are not or may not be required for the special purposes for which such shares or stocks respectively were authorised to be created. Provided that all money raised by the issue of such shares or stocks shall be applied only to purposes to which capital is properly applicable.

Provision as
to general
Railway
Acts.

46. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Costs of
Act.

47. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

SCHEDULE referred to in the foregoing Act.

A.D. 1908.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY MAY BE REQUIRED
TO BE TAKEN BY THE COMPANY.

Parish or other Area.	No. on Deposited Plans.	Description of Property.
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BRANCH RAILWAY AND BRIDGES AT BIRMINGHAM.

Parish and county borough of Birmingham.	51	Yard side entrance wash-house and fowl-run.
Ditto	53	Fellmonger's yard works and offices.

DEVIATION RAILWAY NO. 1.

Parish of Trysull and Seisdon in the rural district of Seisdon.	18	Field rough ground brook water-courses plantation garden and shed.
Ditto	19	Garden brook watercourses drive plantation and shed.
Parish of Wombourn in the rural district of Seisdon.	1	Garden ground and watercourse.
Ditto	12	Garden.
Ditto	14	Stables cowsheds and farm-buildings.
Ditto	15	Garden ground.
Ditto	26	Garden and orchard.
Ditto	27	Garden.
Ditto	29	Garden.
Ditto	30	Garden and sheds.
Ditto	44	Garden pig-stye and outbuildings.
Parish of Penn (Lower) in the rural district of Seisdon.	8	Garden and outbuildings.
Ditto	23	Yards barns stables farm-buildings and occupation road.
Ditto	24	Yard pond garden-ground and occupation road.
Ditto	25	House garden and approach.
Ditto	28	Garden pig-styes and outbuildings.
Parish of Wrottesley in the rural district of Seisdon.	2	Garden stables and outbuildings.
Parish and urban district of Tettenhall.	31	Yard gardens outbuildings and shed.
Ditto	32	House yard garden.

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Parish or other Area.	No. on Deposited Plans.	Description of Property.
Parish and urban district of Tettenhall.	33	House yard garden outbuildings workshops and fowl-runs.
Ditto	34	Yard stables workshops.
Ditto	35	Yard and outbuildings.

DEVIATION RAILWAY No. 2.

Parish of Wombourn in the rural district of Seisdon.	39	Garden pig-stye workshops and sheds.
Ditto	58	Garden.
Parish of Himley in the rural district of Seisdon.	11	Garden and pig-styes.
Ditto.	14	House garden outbuildings pig-styes and fowl-runs.
Parish and rural district of Kingswinford.	1	Field and brook.
Ditto	2	Field strip of land and brook.
Ditto	3	Plantation and brook.
Ditto	10	Tips refuse heaps shafts huts sheds tramways and sidings.
Ditto	15	Tips rough ground shed roads tracks and tramway.
Ditto	15A	Occupation road and tramway.
Ditto	23	Road tramway yard stone-quarries stone-crushing machinery offices and sheds.
Ditto	25	Field rough ground old tips sheds shafts and tramways.
Ditto	26	Rough ground and old tips.
Ditto	27	Rough ground old shafts and tips tracks and offices.
Ditto	28	Garden and rough ground.
Ditto	30	Rough ground bridges tramways shafts engine sheds ponds offices tips sheds and roads.
Ditto	32	Field and old tips.
Ditto	33	Engine-house.
Ditto	38	Garden.
Ditto	40	Garden.
Ditto	44	Field rough ground and old shafts.
Ditto	46	Field and pond.
Ditto	47	Gardens.

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Parish or other Area.	No. on Deposited Plans.	Description of Property.
Parish and rural district of Kingswinford.	48	House garden sidings brick-kilns offices sheds stables pig-styes and outbuildings.
Ditto	50	Field.
Ditto	53A	Road and tramway.
Ditto	54	Field rough ground tips and roads.
Ditto	56	Rough ground occupation road tramway and footpath.
Ditto	62	Field rough ground tips and sheds.
Ditto	63	Field rough ground and shafts.
Ditto	69	Rough ground pig-styes and outbuildings.

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